

24PSCV01556 24PSCV01556

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Case Number: 24PSCV01556 Hearing Date: June 23, 2026 Dept: H

BHL Transport, Inc. v. ANL

Trucking, Case No. 24PSCV01556

ORDER ON MOTION

TO BE RELIEVED AS COUNSEL

Counsel

for Cross-Defendant's Motion to Be Relieved as Counsel is denied without prejudice.

Background

Plaintiff

BHL Transport Inc. (BHL) seeks to recover for the loss of its goods in shipment.

On May

15, 2024, BHL filed a complaint, asserting a breach of contract cause of action

against Longyuan Forwarding Inc. dba American New Logistics Service,

erroneously sued as ANL Trucking ("ANL"). On June 20, 2024, ANL answered and filed

a cross-complaint, asserting causes of action against Dadson Logistics Inc.

("Dadson") and Moes 1-10 for: (1) breach of contract, (2) implied contractual

indemnity, and (3) equitable indemnity On November 12, 2024, Dadson's default

was entered on the cross-complaint. The court entered a default judgment for

\$390,847.61 on October 16, 2025.

Discussion

Virginia

Price, Price Pelletier, LLP ("Firm") seeks to be relieved as counsel

of record for Cross-Defendant Dadson

Logistics Inc. ("Client").

The

court has discretion to allow an attorney to withdraw, and such a motion should

be granted provided that there is no prejudice to the client and it

does not disrupt the orderly process of justice. (See Ramirez v.

Sturdevant (1994) 21 Cal.App.4th 904, 915; People v. Prince (1968)

268 Cal.App.2d 398.)

California

Rule of Court ("CRC") Rule 3.1362 requires (1) a notice of motion and motion

directed to the client (made on the Notice of Motion and Motion to Be

Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)). The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

Firm represents that Client it cannot effectively communicate with the client. Client may have ceased business operations.

The declaration lacks any confirmation under section 3 of the form regarding service, confirmation of address, and/or inability to confirm the address.

While the motion includes proofs of service, the lack of confirmation renders the application non-compliant.

Given

the lack of confirmation of, or inability to confirm, the client address, the

court finds a lack of compliance with Rules of Court Rule 3.1362.

Accordingly,

the motion is denied without prejudice.